

5.	Emery v. Marovic 22-1267207	(Off calendar)
6.	Ngo v. Hanh Phuoc Enterprises, Inc. 21-1233241	Before the Court are two motions. The first motion is by Attorney Jon McGrath to be relieved as counsel for defendants Hanh Phuoc Enterprises, Inc. and Phuoc Hanh Nguyen ("Defendants"). That motion is DENIED. The second motion is by defendants Hanh Phuoc Enterprises, Inc. and Phuoc Hanh Nguyen to continue trial. That motion is GRANTED as set forth herein. MOTION TO BE RELIEVED AS COUNSEL Jon McGrath seeks to be relieved as counsel for the Defendants because they have not paid his fees as required under the retainer agreement. <i>Rule of Court 3.1326</i> sets forth the mandatory requirements for this motion. Mr. McGrath failed to comply with Rule 3.1362(c), (d) and (e). Mr. McGrath did not use the mandatory declaration form, MC-052, required by 3.1362(c). Instead, he prepared his own declaration where he described at length how the clients had not been paying him and how he had financial difficulty but the declaration he submitted did not cover the topics in the mandatory Form MC-052. Mr. McGrath did not comply with the service requirements set forth in 3.1362(d). There is no declaration stating that the clients' address had been confirmed within 30 days. Also, the Court notes that there are inconsistencies regarding the address of the defendants. There is a POS attached to the motion which shows that the two clients were served by mail at 624 Manchester Ave., Los Angeles, CA 90001. However, there is reference in Exhibit 2 to the defendants having a different address. Mr. McGrath also did not comply with <i>Rule 3.1362(e)</i> which requires a that a "proposed order relieving counsel must be prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel--Civil (form MC-053) and must be lodged with the court with the moving papers." Accordingly, for the foregoing reasons, the motion by Jon McGrath to be relieved as counsel is DENIED. MOTION TO CONTINUE TRIAL <i>CRC 3.1332(c)</i> states that "Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." "A motion for continuance is

		addressed to the sound discretion of the trial court.” (<i>Oliveros v. County of Los Angeles</i> (2004) 120 Cal. App. 4th 1389, 1395.) This motion is made on the eve of trial after the case has been pending nearly two years. Defendants argue that good cause exists to continue the trial because if the motion to be relieved as counsel is granted, “defendants will require time to find other counsel to represent them.” (Motion at 3:10-11) There is no other basis for the motion such as the unavailability of a witness or party or an excused inability to obtain essential evidence. The Court notes that the motion to be relieved is based on Mr. McGrath’s assertion that he has not been paid for his services. He states that the defendants’ failure to pay goes back to before the October 2022 mediation. As the plaintiff points out in her opposition, Mr. McGrath has not been diligent in bringing the subject motion. Mr. McGrath states in his declaration that he has been busy these past two years working on a new business he is attempting to start. However, this is not a legitimate basis for delaying the filing of the subject motions. Accordingly, the motion to continue trial is DENIED. The Mandatory Settlement Conference will remain as scheduled for October 6, 2023 at 8:30 a.m. The parties are ordered to comply with Rule 3.1380 in advance of the MSC. Additionally, the Court notes that on 4/19/23, Plaintiff filed an amendment to the complaint naming Phat Phan as DOE 1. There is no POS, default or answer on file. The Court sets an Order to Show Cause re Failure to Serve or Dismiss Defendant Phat Phan for October 13, 2023 at 9:00 a.m. in this Department. <i>Jon McGrath is ordered to give notice of these rulings.</i>
7.	Sommers v. Walker 23-1309183	(Off calendar)
8.	Fidelity Tax Relief LLC v. AdBoom LLC 20-1149130	Defendant Nick Kohlschreiber’s (“Kohlschreiber”) Demurrer to plaintiff Fidelity Tax Relief LLC’s (“Plaintiff”) First Amended Complaint (“FAC”) is OVERRULED. A demurrer challenges the defects appearing on the face of the pleading or from other matters properly subject to judicial notice. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) The issue is the sufficiency of the pleading, not the truth of the facts alleged. Thus, no matter how unlikely or improbable, the allegations made must be accepted as true for the purpose of ruling on the demurrer. (<i>Del E. Webb Corporation v. Structural Materials Co.</i> (1981) 123